

Court No. - 3

Case :- WRIT - C No. - 9091 of 2022

Petitioner :- Atar Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Rajpal

Counsel for Respondent :- C.S.C.,Sunil Kumar Dubey

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Pradeep Kumar Yadav holding brief of learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Siddharth Rastogi holding brief of Sri Sunil Kumar Dubey, learned counsel for the respondent no.3.

Learned counsel for the petitioner submits that on account of financial distress, the petitioner could not deposit the dues of the respondent no.3 and, therefore, facility for payment of dues in installments may be granted to the petitioner.

Learned counsel for the respondent no.3 states that the petitioner may submit an application before the respondent no.3 under Para 6.14 of Chapter VI of U.P. Electricity Supply Code, 2005 for payment of dues in installment which shall be considered and an appropriate order in accordance with law shall be passed by the respondent no.3 within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit application for installment before the respondent no.3 under Para 6.14 of the U.P. Electricity Supply Code, 2005 within three weeks from today alongwith a certified copy of this order and in the event such an application is submitted, the respondent no.3 shall pass an appropriate order in accordance with law within next two weeks after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 18.5.2022

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